



IN THE HIGH COURT OF PUNJAB & HARYANA
AT CHANDIGARH

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CRWP-12654-2024
Date of decision: 01.01.2025

GURWINDER SINGH AND ANOTHER
.....Petitioners

VERSUS

STATE OF PUNJAB AND OTHERS
.....Respondents

CORAM : HON'BLE MR. JUSTICE VINOD S. BHARDWAJ

Present:- Mr. Vishva Nath Sharma, Advocate for the petitioners.

Mr. Balwinder Singh, AAG, Punjab.

VINOD S. BHARDWAJ, J. (Oral)

The petitioners namely Gurwinder Singh and Manpreet Kaur have approached this Court under Article 226 of the Constitution of India for seeking protection of their lives and personal liberty from private respondents No.4 to 7.

The contention of the petitioners is that both are major, aged 28 years and 26 years respectively. In support thereof, copy of the Aadhaar Cards pertaining to the petitioners have been appended. The petitioners further contend that they have performed marriage against the wishes of their parents. The marriage of the petitioners was solemnized on 29.12.2024 at Gurudwara Dashmesh Pitah Path Sahi Dashmi (Regd.), Village Singha Devi, Tehsil Kharar, District Mohali as

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per Sikh rites and ceremonies. A copy of marriage certificate (Annexure P-3) issued by the aforesaid Gurudwara has also been appended. The petitioners apprehend threat to their lives and claim that there is a constant danger of them being implicated in a false case.

Notice of motion restricted to respondents No.1 to 3 only.

Pursuant to supply of advance copy, Mr. Balwinder Singh, AAG, Punjab appears and accepts notice on behalf of respondents No.1 to 3.

Learned counsel for the petitioners states that a representation dated 29.12.2024 (Annexure P-5) has also been submitted by the petitioners to the respondent No.2- Senior Superintendent of Police, District Barnala.

Learned State counsel has no objection if appropriate direction for providing requisite protection to the petitioners is given.

Without examining the question of legality and validity of the marriage and expressing any opinion thereon, the petition is disposed of with the directions to respondent No.2-Senior Superintendent of Police, District Barnala to look into the grievances of the petitioners as set out in the petition and also expressed in the representation (Annexure P-5) and take appropriate action for protection of their lives and liberty as may be warranted by the circumstances.

However, it is clarified that in case any criminal case has

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been/is registered against the petitioners, nothing in this order shall be construed as a bar for taking appropriate action by the police authorities in respect thereof in accordance with law.

The Registry is directed to send a copy of this order along with copy of the petition and above-said representation to respondent No.2- Senior Superintendent of Police, District Barnala for requisite compliance.

The petition is disposed of.

JANUARY 01, 2025
Vishal sharma

(VINOD S. BHARDWAJ)
JUDGE

Whether speaking/reasoned	:	Yes/No
Whether reportable	:	Yes/No